

STATE OF NEW YORK

8052--B

Cal. No. 201

2025-2026 Regular Sessions

IN ASSEMBLY

April 22, 2025

Introduced by M. of A. LAVINE, COLTON, GLICK, SAYEGH, SEAWRIGHT, TAYLOR, VANEL, STIRPE, WOERNER, SHRESTHA -- Multi-Sponsored by -- M. of A. HEVESI -- read once and referred to the Committee on Health -- ordered to a third reading, amended and ordered reprinted, retaining its place on the order of third reading -- again amended on third reading, ordered reprinted, retaining its place on the order of third reading

AN ACT to amend the public health law and the insurance law, in relation to notices of non-renewal provided to a health care professional by a health care plan

The People of the State of New York, represented in Senate and Assembly, do enact as follows:

Section 1. Subdivision 3 of section 4406-d of the public health law, as added by chapter 705 of the laws of 1996, is amended to read as follows:

3. (a) Either party to a contract may exercise a right of non-renewal at the expiration of the contract period set forth therein or, for a contract without a specific expiration date, on each January first occurring after the contract has been in effect for at least one year, upon sixty days notice to the other party; provided, however, that any non-renewal shall not constitute a termination for purposes of this section.

(b) (i) A health care plan shall, in the notice of non-renewal, provide an explanation of its determination. Such explanation shall specify the reason or reasons for the non-renewal, which may include: the reimbursement rate paid for health care services; the quality of care provided by the health care professional to enrollees; utilization rates; credentialing requirements; or clinical appropriateness of the health care services rendered by the health care professional.

(ii) The notice of non-renewal shall provide instructions on how the health care professional may submit information to the health care plan to respond to the reason provided in the notice for the non-renewal of

EXPLANATION--Matter in italics (underscored) is new; matter in brackets [-] is old law to be omitted.

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1 the contract, including instructions on how the health care professional
2 may request reconsideration of the determination by the health care
3 plan.

4 § 2. Subsection (c) of section 4803 of the insurance law, as added by
5 chapter 705 of the laws of 1996, is amended to read as follows:

6 (c) (1) Either party to a contract for participation in the in-network
7 benefits portion of an insurer's network for a managed care product may
8 exercise a right of non-renewal at the expiration of the contract period
9 set forth therein or, for a contract without a specific expiration date,
10 on each January first occurring after the contract has been in effect
11 for at least one year, upon sixty days notice to the other party;
12 provided, however, that any non-renewal shall not constitute a termi-
13 nation for purposes of this section.

14 (2) (i) An insurer shall, in the notice of non-renewal, provide an
15 explanation of its determination. Such explanation shall specify the
16 reason or reasons for the non-renewal, which may include: the reimburse-
17 ment rate paid for health care services; the quality of care provided by
18 the health care professional to enrollees; utilization rates; creden-
19 tialing requirements; or clinical appropriateness of the health care
20 services rendered by the health care professional.

21 (ii) The notice of non-renewal shall provide instructions on how the
22 health care professional may submit information to the insurer to
23 respond to the rationale provided in the notice for the non-renewal of
24 the contract, including instructions on how the health care professional
25 may request reconsideration of the determination by the health care
26 plan.

27 § 3. This act shall take effect on the ninetieth day after it shall
28 have become a law.